

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
PATRICK CERZA,

Plaintiff,

-against-

SUMMONS

Index #:

Date Purchased:

The basis of venue
designated is: The
County where the
Plaintiff resides is
Richmond County

THE CITY OF NEW YORK, STEPHEN D'AMICO and
"JOHN DOE No. 1", through "JOHN DOES
No. 3,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to service a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Staten Island, NY
May 21, 2020



LAW OFFICES OF ROBERT E. BROWN, PC
Attorneys for Plaintiff
PATRICK CERZA
260 Christopher Lane, Suite 201
Staten Island, New York 10314
(718) 979-9779

TO: THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
Division of Law – Rm 1225 South
1 Centre Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
PATRICK CERZA,

INDEX No.

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, STEPHEN D'AMICO and
"JOHN DOE No. 1", through "JOHN DOES
No. 3,

Defendants.

-----X

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of Plaintiff's rights under the Constitution of the United States, the Constitution of the State of New York as well as the common law of the State of New York.

JURISDICTION AND VENUE

2. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against John Doe No. 1 through 10, POLICE OFFICER STEPHEN D'AMICO and THE CITY OF NEW YORK ("CITY"), (collectively, "Defendants").

3. Notice of the Plaintiff's claim and his intention to sue thereon, and of the time when and the place where his injuries were sustained, was duly served and filed with the Defendant CITY on July 26, 2018 and acknowledged by Defendant CITY. Said claim was

assigned number 2019PI019109. More than thirty (30) days have elapsed since the service of such notices of claim, and Defendant CITY, has failed and refused to adjust such claims.

4. A General Municipal Law Section 50-h Hearing was conducted by Defendant CITY on Plaintiff before the commencement of this action.

5. This action is started within one year and 90 days from the date of occurrence.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

Plaintiff

7. Plaintiff PATRICK CERZA is a resident of Richmond County.

Defendants

8. At all times herein stated, Defendant CITY was, and continues still to be, a public corporation within the State of New York, and duly created, organized and existing under and by virtue of the laws of the State of New York.

9. At all times herein stated, the CITY was, and continues still to be, a municipal corporation within the State of New York, which was duly created, organized and existing under, by virtue of the laws of the State of New York.

10. At all times herein stated, the CITY did maintain a police department pursuant to law.

11. Defendant CITY operates the New York City Police Department ("NYPD"), a department or agency of Defendant CITY responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers.

12. Upon information and belief, Defendant STEPHEN D'AMICO at all relevant times was employed by NYPD.

13. Upon information and belief, John Doe No. 1 through 3(hereinafter collectively, "Defendant NYPD Officers")at all relevant times were employed by NYPD.

14. At all times relevant Defendant NYPD Officers were police officers, detectives or supervisors employed by the NYPD.

15. Plaintiff does not know the real names and shield numbers, if any, of Defendant NYPD Officers.

16. At all times herein stated, the CITY did employ police officers pursuant to law.

17. At all times herein stated, Defendant NYPD Officers represented to the Plaintiff that they were employed by the CITY and worked at the NYPD; all of whom were in the employ of Defendant CITY and assigned to the NYPD.

18. At all times herein stated, Defendant CITY, its agents, servants and employees, were acting under color of state law and pursuant to municipal policy and custom.

RELEVANT FACTS

19. Plaintiff resides at 39 Holland Avenue, in Staten Island, New York.

20. Plaintiff's interaction at issue with Defendants began on or about January 4, 2018.

21. Upon information and belief, on or about January 4, 2018, Plaintiff was walking from his home to a deli in his neighborhood.

22. While Plaintiff was walking towards the deli, he was approached by a police vehicle.

23. Police officers exited the vehicle and approached Plaintiff to ask him where he lived.

24. While one officer questioned the Plaintiff, another retrieved what Plaintiff believed to be a cigarette butt. The cigarette butt did not come from Plaintiff nor did he know where it came from. The interaction was captured on video. The video clearly showed Plaintiff did not possess the cigarette which Defendants claim contained a controlled substance.

25. He was then asked if he had any weapons on him, which he did not.

26. Plaintiff was then searched, handcuffed and then put in the back of the police vehicle without probable cause.

27. Plaintiff asked the officers why he was being arrested and he was told that he would find out when he got to the precinct.

28. Plaintiff was taken to the 121st precinct in Staten Island. There he was fingerprinted and photographed.

29. Plaintiff was held at the precinct for several hours, still without being told why he was arrested.

30. Eventually Plaintiff was taken in front of a judge. He was charged with criminal possession of a controlled substance and bail was set.

31. Plaintiff was wrongfully incarcerated for approximately two to four days.

32. After the two to four days incarcerated, Plaintiff made bail.

33. Over the next couple of months, Plaintiff had multiple court appearances.

34. Plaintiff's case went to trial and it was a bench trial in front of a judge.

35. Plaintiff was found not guilty.

36. Plaintiff suffered damage as a result of Defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

37. Plaintiff was caused to sustain psychological damage and to have suffered pain, shock and mental anguish; that these injuries and the effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur, expenses for medical care and attention.

38. As a result of such occurrence, Plaintiff suffered: confinement; loss of liberty; shock, fright, fear; and severe mental anguish. Moreover, Plaintiff was caused to suffer: false and wrongful confinement; grave risk to his life and property. Plaintiff was also deprived of his rights, privileges and immunities secured to them by the Constitution and laws of the United States and the State of New York, including and particularly: his rights not to be subjected to unnecessary restraint and harm; to be secure in his person against unreasonable searches and seizure; to be free from harm and from arbitrary interference with his person; freedom of movement; due process of law, and to be accorded the equal protection of the laws at the hands of persons acting under color of state law.

**AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C. § 1983)**

39. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

40. Defendants by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

41. Defendants, by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

42. The conduct and actions of Defendants acting under color of law and under their authority as officers was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific serious bodily harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

43. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

**AS AND FOR A SECOND CAUSE OF ACTION
(Monell Claim)**

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

46. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

47. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD, but were not limited to, police officers: failing to report misconduct of other officers and unlawfully searching individuals and arresting individuals.

48. In addition, Defendant CITY engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of Plaintiff's rights as described herein. As a result of the failure of Defendant CITY to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, Defendant CITY has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

49. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

50. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

52. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and NYPD, Plaintiff was subjected to an illegal search and unlawfully arrested.

53. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

54. All of the foregoing acts by defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right to be free from false arrest/unlawful imprisonment

and the right to be free from unreasonable search and seizure.

55. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**AS AND FOR A THIRD CAUSE OF ACTION
(Negligence)**

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. Defendants owed Plaintiff a duty of care to prevent them from being false arrested, maliciously prosecuted, illegally searched and assaulted.

58. Defendants breached that duty of care.

59. Defendants' breach of duty was the but-for cause of Plaintiff's injuries.

60. Defendants' breach of duty was the proximate cause of Plaintiff's injuries.

61. Plaintiff sustained damages, including but not limited to serious physical injuries, emotional injuries and pain and suffering as a result.

**AS AND FOR A FOURTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision Against Defendant City)**

62. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

63. The above-described injuries suffered by the Plaintiff are the proximate result of the negligence of the Defendant CITY in that Defendant CITY failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees in NYPD.

64. Defendant CITY failed to properly train Defendants as to the appropriate investigative techniques required to make an arrest based on probable cause.

65. Defendant CITY failed to exercise reasonable care by retaining and not terminating the employment of individual Defendants, or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the Defendant CITY.

66. By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A FIFTH CAUSE OF ACTION
(New York Constitution Art. I, § 11)**

67. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

68. By the aforesaid acts, defendants have violated Plaintiff's right to the equal protection of laws under Article I, § 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

69. The conduct and actions of the individual Defendants and Defendant CITY, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under laws and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Article I, § 11, deprived the Plaintiff of rights, including but not limited to, rights under Article I, § 8, 9, guaranteeing freedom of expression and association, Article I, § 12, guaranteeing protection

against unlawful seizure of the person, Article I, § 11 guaranteeing due process and equal protection under the law, and Article I, § 5 guaranteeing protection from cruel and unusual punishment.

70. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all Defendants, jointly and severally;
- (b) Punitive damages against the individual Defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: Staten Island, New York
May 21, 2020



Robert E. Brown, Esq.
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Attorneys for Plaintiff
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SUPREME COURT OF THE STATE OF NEW YORK
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Plaintiff,

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SUMMONS AND VERIFIED COMPLAINT

THE LAW OFFICE OF ROBERT E. BROWN, P.C.
Attorney for Plaintiff
260 Christopher Lane, Suite 201
Staten Island, NY 10314
(718) 979-9779

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of this document or the contentions contained therein are not frivolous.

Dated: May 21, 2020


Signature: _____
Signer's name: Robert E. Brown